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Loudoun County Board of Supervisors, Public Hearing, Wednesday, May 13, 2026

Date Wednesday, May 13, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 1h 48m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8178>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8178>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:04:24] Supervisors, good evening, staff, and good evening, Loudon. Before I call to order the public hearing, because once I call to order the public hearing, we're in public hearing, I want to have just a discussion with colleagues and see what you all think about this idea.

[00:04:45] The last time when we were on the dais, we recessed the meeting instead of adjourned it, only because we were so tired that we were seeing spots in front of our faces and we were going to have a closed session that had nothing to do with the with walrus that probably would have lasted about an hour and we were really really tired so we recessed the public meeting until tonight so that we can roll the closed session over um technically obviously we're still in that meeting from the 4th. However, I will say that the motions on the dais right now that came today

[00:05:24] make me a little concerned because I don't believe, although it is appropriate to make them at this time, I don't believe that they have been put out to the public at all. And I just, Mr. Kirshner can't make the meeting tonight because he's in some remote part of Nebraska doing Mr. Kirshner stuff. Ms. Glass can't make the meeting tonight. And so this is my thought. Now, and either way, it really is fine with me. But my thought is, at this point, we have two colleagues that could bring this back again on May 19th anyway, if they wanted to, if they

[00:06:01] didn't like the way motions went tonight. And they probably would. Instead of doing this last time, And then tonight, and then on the 19th, we could make a motion, I could make a motion to allow us for this one time to send reconsideration motions to the meeting on the 19th when everyone is here.

[00:06:24] And then everyone who would be in the public who want to be part of this discussion could be back, whether it be conservationists or people in which Ms. DeCrony calls the industry or whatever. Either way, I really, I just, I have a feeling that we're going to do something tonight and then we're going to take a lot of time doing it and then do it again in the 19th when Mr. Kirshner's back and Ms. Glass is back.

[00:06:49] And it just doesn't make sense to me to do it twice. So I would be fine, you know, doing, making a motion to say, let's do it on the 19th. But if you all don't want to, don't. But I just, I don't particularly, I mean, we are still in that meeting not for these motions.

[00:07:08] We're still in that meeting because we had a closed session that we weren't going to have. And so I don't think anybody but the people who put the motion on the table and us who've seen them since they got to us by 12 noon, were ready for this.

[00:07:24] And I'm not even sure how ready staff are for these motions right now because they were just completely unexpected, to be honest. So that's my thought, is to send this all to the 19th, because we're going to do it again on the 19th anyway, possibly, and probably, versus doing it tonight.

[00:07:42] So I just kind of, because we haven't called this meeting to public care into order first, just any thoughts on that? Any thoughts on that? Any thoughts on that? I'll get to you in a sec. Mr. Crony?

[00:07:57] So, my concern would be that, you know, this is guidance, and we do have a very tight timeline to get the ZOAM and CPAM done by the end of the year. So, this will, you know, delay some time, again, that staff could be drafting some text.

[00:08:20] I did send my concern with one of the wrap-up motions to staff. last Tuesday. So staff has had my reconsidered reconsideration motion for quite a while. And I believe that they've seen some of the others as well. So, I mean, I would I would I would tend to lean towards let's move this forward.

[00:08:50] You're right. This is guidance, but the staff's not going to do too much if they hear from other colleagues on not in the day is that they're going to bring it back anyway. So either way, it still goes—I mean, that's next Tuesday, so it's less than a week from now. And if our colleagues bring it back, they're still not going to do anything on—it's literally five days.

[00:09:09] And nothing would happen anyway within these five days because our meeting is next Tuesday. So—but you did. You're right. You sent this out. You sent this out. I'm not—that's not—I'm just trying to say you absolutely did, Mr. Crony. Absolutely. And if we go ahead, fine.

[00:09:26] I just don't know that I want to do this two more times, to be honest. That's my thoughts. I'm sorry, I thought your light was on. Your light's not. I would just say, in general, if we have a chance of having all board members at a meeting, I would favor that.

[00:09:45] Okay. No, your light's not on. Mr. Turner. Thank you, Madam Chair. I was inclined to agree with Supervisor Crony when we were first thinking about this, and let's just get this over with. But you bring a really valid point. We're just going to go through this drill again on the 19th because we have two people absent.

[00:10:01] And however this goes, one of those two people is probably going to ask for a reconsideration. So I think that makes good sense, and I can live with delaying it until the 19th. Well, it's just, yeah. So, Mr. Crescain, do you have anything? I'm sorry. I'm sorry.

[00:10:16] Sure, since you asked. I'm sorry. Good evening, everybody. Well, my thought is, what, T-Luck met? How many times did T-Luck meet for this? Two years. Two years, which is a lot of meetings.

[00:10:31] And then we had our lengthy meeting the other night, and we made motions and whatnot. So I'm fine with sticking with what we did the other night and moving forward, because all we're going to do is keep going back and forth like ping pong. We know and it was said numerous times the other night that what we're voting on is going to go to ZOC and Planning Commission.

[00:10:54] Then we're still going to have another chance to make changes and updates and et cetera after they take a bite at this project. So I'm comfortable just moving forward with what we did the other day and continuing on and getting this thing rolling. So thank you. I don't know your answer to this question. So you're saying make the motions tonight?

[00:11:10] I'm saying don't even make no darn motions. Well, that's not it. Well, fine, we can make the motion, but I'm going to vote for every single reconsideration and no, so. Okay. Well, okay. Would you do that next Tuesday as well? Yes, ma'am. Mr. Bricksman?

[00:11:28] Thank you, Madam Chair. I would prefer to have the discussion tonight. I think that everyone got their motions in on time as requested, and yeah, so I would prefer to do it tonight.

[00:11:45] Yeah, no, colleagues, this is not a question about whether you're, actually, I guess technically your motions wouldn't have been on time if we hadn't have recessed the meeting. They're only on time because we recessed the meeting for a closed session. But really, it's really not about that. You're right.

[00:12:00] People got their motions in by, well, Ms. Karani did last Tuesday. Most people got theirs in today. I just don't want to do this three times. I mean, I just don't. So let's take a straw poll vote. point of parliamentary inquiry yes sir um so i'm trying to think through so if we if we take the straw poll and we move the reconsideration it's probably actually be a motion motion okay if we make a motion and then we we delay these reconsideration motions to the 19th yep we are

[00:12:37] more than one meeting away from the last meeting for reconsideration do we somehow disenfranchise certain board members because we're more than one meeting away from the reconsideration that's That's why it would have to be a motion. I don't know. I'm sorry. I don't understand your question. Mr. Rogers, maybe you can help me with what I'm saying.

[00:12:56] If we have to reconsider at the next meeting, which would be this meeting, which is why these are here, if we delay it until May 19th and Supervisor Kirshner and Supervisor Glass are not here right now, have they lost the opportunity to ask for reconsideration because they're now two meetings from the original meeting?

[00:13:13] Oh, I see. They're not here tonight, so they wouldn't be able to make motions to reconsider. That would be correct, strictly speaking, under the board's rules of order, since it needs to be done at the succeeding board meeting. The succeeding board meeting actually happened to be the same day as we adjourned around 1 o'clock and 1 a.m.

[00:13:35] But you are correct, they would not be able to bring a motion to reconsider. This would allow them to do it. They could on the 19th. They could on the 19th. Because they're not here tonight. If the motion passes, that's on the red sheet of paper. Yeah, that's my point. Yeah. One other comment, Madam Chair. Also, I was looking at the tentative agenda for May 19th today, and it is very long, plus three closed sessions. It is. So that's another reason why I would prefer to have the conversation tonight. It is long. You're right. Although I don't think it's going to stop us from doing it on the 19th. I think we're going to do it twice. I think we're going to do it tonight and then again on the 19th, because the 19th is the only day they could bring

[00:14:12] it back. So whether or not this passes tonight, they could still bring it back on the 19th, No matter what. Oh, well, that's unlikely. That's unlikely. All right. Mr. I know you walked in late. I have a question. This is probably a question for Mr. Rogers.

[00:14:29] So if the board were to approve a motion to reconsider and change the motion tonight, would then another motion to reconsider be in order from a board member who was absent at the next meeting? That is correct. It is limited to the action taken tonight on the motion to reconsider.

[00:14:48] they would not be able to bring motions to any other motions beside but only but the motions that were reconsidered tonight could be brought back next meeting by a board member who's absent yes sir all right yeah so sorry point of inquiry yeah is mr. Kirscher not participating yeah no I I called him today and we had a very kind of on and off conversation because his phone kept dropping he is in Nebraska and and he was he he said to me that he They are driving to an area of Nebraska to do Mr. Kirshner stuff that just has no reception at all.

[00:15:25] He is not participating in the meeting remotely. I saw the notification earlier that he was part of my confusion over the discussion, but he's not. When we first started, you missed that part. And neither is Ms. Glass. She won't be here either. Okay. So I'll make the motion and we'll see where we go and then we'll make decisions after.

[00:15:43] Okay. I move the Board of Supervisors suspend the portion of Rule X? Mr. Rogers, what is Rule X? Reconsideration of the Board's Rules of Order. Oh, okay. Pretend to bring in a motion to reconsider at the succeeding business meeting to allow any motion to reconsider actions taken at the May 4th, 2026 Special Board Meeting to be brought to the May 19th, 2026 Special Board Meeting.

[00:16:12] All right. Motion is made in second. So I've given the reason. Really, seriously, you all, you are correct, especially Mr. Crony. You got your stuff in. That's not the issue. The issue is, I don't know why we're going to do this two times. That's my only statement, and I can guarantee you, I don't know about Ms. Glass, but I know Mr. Kirsten will bring some of these motions back. He will. I mean, most of the area we're talking about is his area.

[00:16:42] And so, anyway, yeah, Ms. Brixman? Thank you, Madam Chair. Point of clarification, per this motion, anything from the May 4th meeting could be reconsidered at the May 19th meeting. Okay, I'm getting a nod from our county attorney, but if we were to just do the reconsiderations tonight, then the only thing that can be brought back on the 19th would be the reconsiderations that we do tonight.

[00:17:09] Madam Chair, if I may, that is accurate. Only the ones that were acted on tonight could be reconsidered. If Supervisor Kirshner or Glass had other motions, those couldn't be reconsidered per your

rules. Okay, so it would only be the one, two, there's about three or four motions here, and those would be the only ones that could be brought back on Tuesday.

[00:17:36] Yep. Okay. I'm not going to support the motion. Thank you. Okay. All right, cool. All right, I made the motion seconded by Mr. Vestra Turner. All in favor, please say aye. Aye. Opposed? I don't know where that went. I think that was four. Wait, I'm sorry. If you were an aye, raise your hand. One, two, three, four, four, three. Is that right? Four, three. That's a four, three. So that will pass. So we'll take these up on the 19th. All right. Now I'm going to call.

[00:18:08] Madam Chair. Yes. If I may recommend that you recess the continued board meeting as you get into the public hearings. After the public hearing? Recess it now, then reconvene it after the public hearings. Why? Because you just took actions from the board meeting.

[00:18:24] Okay. Well, yeah. I actually didn't even call the public hearing into order yet. So, yeah, I didn't call the public hearing into order yet, purposely. So I will...

[00:18:40] You would be recessing the reconvened board meeting? may 4th board meeting um and then calling the public hearing into order as well it was it may 5th i thought it was it may 5th okay may 5th board meeting thank you and i will and now i will i will call the may 13 2026 loudon county boards will revise this public um hearing um into order this room has a hearing loop if you need hearing assistance please switch your hearing aid to the telecom mode if you need a headset we have those available as well please see the clerk to request one um uh it it well that other stuff i'm not going to say um and that i'm not going to say

[00:19:18] because mr kershner is not coming on so i'm going to say next everybody please Please join me in the Pledge of Allegiance. I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:19:44] Okay. Once tonight, public meeting. Okay, now, as a reminder, all members of the public addressing the board this evening, you may only sign up once to speak on matters that have been advertised for this public hearing.

[00:19:59] Due to the broadcast delay, any member of the public who are not in the boardroom wishing to address the board on items 1, 2, 3, 4, 5, and 6, which are on the consolidated hearing agenda, please call the number scrolling across your screen at this time. If you signed up to speak, you will be allotted two and a half minutes.

[00:20:18] If you're in the boardroom, we ask that your name is called. Please come to the podium. State your name for the record. The timer on the podium will indicate your remaining time. When your time, thank you, when your time has expired, please yield the floor to the next speaker. If you're providing your comments via phone, I'm going to ask that you keep your own time because I'm not going to stop you when your time gets to one minute, 30 seconds, because it messes up your flow, but I will stop you when you get to two minutes, and so if you use your phone or stopwatch or whatever to keep your own time, that will be helpful.

[00:20:51] When taking public input for items, I would first ask if there's anyone in the boardroom wishing to speak, and then I go to the moderator and ask if there's anyone speaking online. There is a slight delay between the broadcast and the boardroom. We have very few speakers tonight, to be honest. Now, from what I was just handed, we just got a speaker on item number six, which we didn't have before,

which means item number six will now be taken off the consolidated agenda so let's remove that's let's go back and I will remove I am number six

[00:21:27] consolidated agenda because I was just handed a notice that says somebody wants to speak on item number six which is absolutely fine anything else for that all right Andy can you hear me I can't hear you wonderful all right the board will hear the following items as a consolidated hearing as a reminder these items are consolidated because there were no outstanding issues staff has recommended approval. The applicant has waived their presentation time and no public speakers registered in advance to speak. Item number one, amendments to chapter 1096 of the

[00:22:05] codified ordinance of Loudoun County, erosion and storm water management. That's a countywide item. I'll be happy to read that motion. Item number two, amendment to chapter 260 of the codified ordinance of Loudoun County, repeal of Dulles Town Center Community Development Authority. That is in Sterling, Mr. Sainz's district.

[00:22:22] Item number three, the proposed conveyance of county property, conveyance of easement at Concora Fire Station. At the Concora Fire Station, the Loudoun County Sanitation Authority, DBA, Loudoun Water. That's a broad-run district item. Ms. Glass has asked me to make that motion for her. Happy to do that.

[00:22:38] Item four, proposed conveyance of county property, conveyance of water main easement on Goshen Corner Park to Loudoun County Sanitation Authority. That is in the Dulles district. I will go to Mr. Letourneau on that. And the last item is request for withdrawal of land belonging to Thomas and Mary Francis from the New Bluemont Agricultural and Forage District.

[00:23:01] That's in Catoclin. I, again, will be happy to make that motion. Are there any members of the public wishing to speak on items one, two? Let me make sure I get it right. One, two, three, four, or five? Seeing none, I will close the consolidated hearing.

[00:23:18] I'm going to ask you all to go to your hearing sheets, which was, I think, just handed to us from Ms. Jenny, right? Yes, yes, yes. Didn't you? Yes, she did. I got it. I got it. And I will make some motions.

[00:23:34] I will first go to item one. I move the Board of Supervisors approve motion 2B for the approval of amendments to Chapter 1096 of the Codified Owners of Loudoun County Erosion and Stormwater Management is provided in May 13, 2026, public hearing item one staff report motion is made and seconded by saying discussion on the motion see none on people say aye any opposed that motion will pass seven zero two mr. Hemstreet since we did not expect I number six to be discussed because up until three minutes ago it wasn't staff is staff

[00:24:13] here for that item the staff is here for that item madam chair you also have an open public hearing for all your consolidated items so you could read it into consolidated and have the speaker come up during the public hearing on all the consolidated items or it could be remanded. Okay it was okay okay okay that's fine. And the staff is here ma'am. Okay wonderful all right number two is in Sterling District Mr. Sains. I move that the Board of Supervisors approve motion to be for the proposed amendment to chapter 260 of the codified orders of Loudoun County repeal of Dulles Town Center Community Development Authority as provided in the May

[00:24:48] 13th 2026 public hearing item number two staff report second discussion on the motion thank you madam chair no this just uh finalizes what we've done a little bit earlier this year well yeah earlier well

late last year excuse me when we um i made the motion and it was approved to disband the dulles town center community development authority that wasn't put in place to manage the the funding for the dulles town center and the development and the infrastructure around it That has all been completed ahead of schedule, I believe.

[00:25:21] So we disbanded the Community Development Authority because there's no longer a use for it. And the work is done. So thank you. I'm just going to give a little commercial for the Dulles Town Center Mall. I saw today, which I thought was really interesting, that only 18% of people actually shop online, which means most people still want to go to a brick-and-mortar store and shop, which surprised me.

[00:25:47] We are a county of consequence, a county of 453,000 people. It'd be a shame if we lost our mall. Now, can we redevelop it? Can we do something different? Can we move some things in there that are, give people an experiential moment when they go to the mall?

[00:26:04] Sure, we can and we should. And I do know, because I'm not sure if it's been announced yet, that we have a different company who are going to be leasing, doing leasing in the mall. But I do want to say that I am leaned all the way in. talked to Mr. Reiser about this many many times about the importance of us actually having our mall and having opportunities for experiences and just for people to go out and and convene in public and maybe not always just do things online so I think this is a good thing and and everybody go shopping all

[00:26:39] right anybody else all right all people who say aye any opposed that motion will pass 702. I am number three. I move the board of supervisors move motion to be proposed conveyance of easement within pin number 042-49-0209-000 to Loudoun County Sanitation Authority. It's provided in the May 13, 2026 public hearing item three staff report. Motion made and seconded. I would just say I did talk to Ms. Glass's staff. She was fine with this motion and asked me to make the

[00:27:14] motion. Had no issues at all with this. Anybody else? All the people say aye. Any opposed? Thank you. Mr. Letourneau. I move the Board of Supervisors approve. Motion to be proposed conveyance of easement within Pen 248176333000 to Loudoun County Sanitation Authority as provided in the May 13, 2026 public hearing item 4 staff report. Second. Motion made and seconded by Ms.

[00:27:42] took for any discussion on that motion this is just a 20-foot wide easement at a county park goshen kind of a pocket park to support a water main installation by loud and water thank you sir anything else all in favor please say aye aye any opposed that motion will pass 702 i move that the board this is for the catoctin district i'm making this motion for mr kirschner I move the Board of Supervisors to approve Motion 2B, Alleged 2025-0013, Request for withdrawal of the land belonging to Thomas L. and Mary F. Francis from the New Blumont

[00:28:20] Agriculture and Forestry District, as provided in the May 13, 2026 Public Hearing Item 5 Staff Report. Motion made and seconded by Supervisor Zanes. Discussion on the motion, same thing. When I talked to Mr. Kirschner on our on and off again conversation, because the call kept dropping he was fine with this and asked that i made the motion had no issues with it at all anybody else all people say hi any opposed that motion passed 702 okay let's go to item number

[00:28:52] six then um please this is um in is this in the aspirin district isn't your district it's in sterling district okay special exception 2025.0001 in the sterling district good evening and we have

[00:29:16] there we go we have a applicant how you all doing good all right staff are ready for yes ma'am one

[00:29:35] moment okay in board of supervisors and chair randall my name is fayula gordon and i am with the department of planning and zoning i will be presenting the application legy 2025 0015 sdc ashburn 1 a special exception application the subject property is located along shellhorn road east

[00:30:15] of Loudoun County Parkway and north of Dulles Greenway. The site is part of the existing Project Nova development. The area is bordered by data center development such as Project Samuel to the west, Silver District west to the south of Dulles Greenway. The subject property is a zone office park and it is located within the urban policy area. It is designated as the urban transit center place type. This designation was previously urban employment and was updated following the

[00:30:49] adoption of the data center standards and locations CPAM and ZOAM. The applicant is requesting a special exception to increase building footprint from approximately 14,000 square feet as previously approved under ZMAP 2019-0002 Project Novo to 20,000 square feet. However, the applicant has an approved FAR allowing up to approximately 605,000 square feet of data center use which is currently

[00:31:25] underutilized on the site. This slide that you're seeing is essentially summarizing the development history of the site so you have the data center use was established through priory zonings in 1993 and 2019. In 2020 buildings A through D were approved to be built and ultimately in 2023 building D was removed from an approved site plan and today buildings A through C have been constructed that you can see on the graphic provided up top and the current application

[00:32:01] is bounded by the special exception area shown in pink and it is highlighted by building d in orange so this is just a close-up of that graphic and the plot highlights the limits of special exception and the bold orange triangles on your screen that is approximately 830 square feet give or take and it represents the portion of building d that extends beyond the approved rezoning boundary which which is that red dashed line that you see going across the site.

[00:32:34] So the 2019 general plan envisions mixed-use walkable transit-oriented development in the urban transit's center place type and does not identify data centers as a primary use. However, building D remains approved, and the special exception request is limited to the small portion that we just discussed.

[00:32:57] And therefore, while the place type is an issue for consideration, staff could support the request given that the site has established data center use and that the specs is limited to approximately the 800 square feet that I just mentioned. So what staff has recommended is certain conditions to meet the county standards and also to integrate so that the application integrates well with the surrounding area. So these include building design which features the office-like architectural appearance shown in the graphic along with

[00:33:36] sustainable measures such as soil restoration, stormwater management, recycled materials and low carbon concrete. Additional conditions include like EV charging, outdoor seating area and bicycle and pedestrian facilities consistent with the 2019 general plan.

[00:33:55] These elevations show the proposed office-like architectural design including glazing and varied materials. The proposed building height is 20 feet and or 33 feet including the parapet. As conditioned these elements would be carried through to ensure consistency with the place type.

[00:34:14] So ultimately based on the analysis presented place type notwithstanding staff could support board's approval of the application subjected to the recommended conditions of approval. Staff is available to answer any questions. Point of clarification. Did you say it would be an extra Well, not extra, but the discussion we're having is for 1,400 or 800 square feet?

[00:34:37] Let me go back to, so 800 square feet, where you see the triangles, the highlighted triangle area, that is approximately 800 square feet, which is what the special exception is limited to.

[00:34:55] So that is what you would be approving. 800 square feet. Yeah. Okay. All right. Thank you. Supervisors, do you have questions? Mr. Crony, I think you pulled this off the consolidated, but this is Mr. Sains' district, so I'll go to him first. All right. Thank you, Madam Chair. Thank you for the presentation.

[00:35:13] So did I hear you correctly in the Madam Chair's question just a second ago? So this was approved originally, and then for whatever reason, the applicant removed it, then wanted to put it back in and build what was approved.

[00:35:31] Technically, they could build now, but because of that, you said 800 square feet? Approximately. Approximately 800 square feet, which is these orange, three orange triangles. That's why they're in front of us today. Yes. So, okay.

[00:35:48] And go back out to your, what are your images? Okay, so this is, we have green, the greenway is to the left. Loudoun County Parkway is up off your screen a little bit. Is that correct? So.

[00:36:07] Okay, thank you. Yeah. All right, so Loudoun, where's Loudoun County Parkway? All right, I see it. Yeah, to the side. and the site so we have the little pointer thing see if this works all right so we have this building is already existence now correct yes this building is already existence now correct yes and this smaller building is already in existence now yes and they want to build i guess right about here yes approximately approximately it's almost going to match this building that's here right now yes okay and then in regards to the materials and if you don't

[00:36:46] know the answer please say so next to the applicant so it's saying they're going to build with low carbon concrete is that throughout the whole structure i'm going to defer to the applicant for that one okay and and again the only reason why they're in front of us is because of that 800 extra square feet these this triangle here this triangle and this triangle right here that's That's correct.

[00:37:12] Okay. All right. Thank you. Thank you. Ms. Bricksman. Thank you. How much can the applicant build by right? How many square feet? The entire site is approved for approximately 605 square feet, 605,000 square feet of data center use.

[00:37:30] Therefore, I would have to do some math to see what is already existing, but they have not built the entire use of data center that they're allowed to build currently, which is up to 605,000 square feet.

[00:37:46] Oh, so all four buildings, they are permitted to have 600 and some thousand square feet. That's correct. Okay. Okay. And so essentially the application is asking for an extra 800 square feet in the four buildings that were originally approved. Could you rephrase that question for me?

[00:38:02] It sounds to me as if the site of four buildings was approved for 600-some-thousand square feet of data center, but essentially this application is coming in because they want a special exception to do an extra 800 square feet over the 600,000.

[00:38:22] No. Oh. So they are coming in based on what we just discussed or those areas that we pointed out. However, they are allowed to construct up to 605,000 square feet.

[00:38:39] However, the total square feet of data center that exists currently on site is less than the 605,000 square feet. So they do have room to develop building D without a special exception.

[00:38:58] The issue, no, is just because they removed Building D from the approved site plan. Okay, so it's not adding square footage. The issue is where the square footage needs to be if they want to build a building like this. That's correct. I got you. Okay, okay.

[00:39:13] And then the original approval for the four buildings and the 600,000, 105,000 square feet, was that a land use case? Yes. And it was zoned from what to what? it was rezoned from what to what so it essentially what they they that they came in for in 2019

[00:39:51] was to um update the proffer statement and the concept development plan okay okay so so it had already been proven before 2019 yes to establish data center use on the the site okay okay thank Thank you very much.

[00:40:11] You're welcome. Mr. Crony. Thank you, Chair Randall, and thanks for the presentation. So where is, I always ask about infrastructure, right? Where is the substation close to this property? There is an application that is coming after this, the barrister substation, and I would want that application to speak to that question specifically.

[00:40:37] Oh, you think it's the barrister substation? Okay. No? Oh, that is. Okay. what about um do you know anything about the transmission line so i i know we're going to work on that putting that in staff reports um it was not in the staff report but um the high voltage transmission lines do you have any idea where those are i guess i could ask the applicant i would have to about that get back to you on that one okay yeah i look forward to having that in the staff report okay um so i saw that um the footprint increased 5 614 square feet maybe i need to talk with the applicant about that because it looks like it's a special exception to permit the

[00:41:17] expansion of data center building footprint from 14 386 square feet um to 20 000 square feet so that's 5 614. to clarify um that first number the 14 000 square feet that you spoke about that was what building d was approved for on the site plan itself however they could develop more than the 14 000 square feet given what was already approved right but they didn't include it you said it you have to come back because it wasn't included no but it's they already

[00:41:55] they have the rights to the square footage itself it's by crossing that dashed red line is the only reason it's here it's not the 5 000 square feet it's the 800 square feet on the east side of that dashed line shown right now they have the rights to build up to 20,000 square feet if it was slightly left of this on this graphic and was within the area of the previous Z map okay so they couldn't move it I guess they couldn't figure out I mean this is their preference that's why they've okay okay all right I think

[00:42:27] thank you I'm step thank you madam chair could we get clarification based on supervisor to cronies questions and the head shaking that was going on at the applicants end of the table is the barrister substation essential for this data center could I get an answer to that I would retract that statement and I would say that I would need to go back and do some research to answer that question okay thank you could that be a question maybe for the applicant when we

[00:43:04] get there? Yes. Okay. Mr. Turner. Thank you, Madam Chair. I'm going to ask you two questions. I suspect your answer is going to be I have to defer to the applicant, but I want the applicant to have a heads up. These questions are coming. I am baffled. Did the applicant indicate at all why they simply didn't redesign the building to shave off these three little points and 800 square feet so they wouldn't have to go through this crazy thrash? Number one. You can answer. I will defer to that thank you and number two um will the fourth building necessitate a new power line

[00:43:42] entering the site um uh based on the megawattage of the added building it doesn't based on the size of the building square footage my bet is no but any indication on power and if that will require a new power to come into the site i will defer to the applicant thank you very much um i think probably all of my questions would probably be for the applicant, so I appreciate the presentation. Thank you so much. To the applicant, Mr. Meyer, it is good to see you. Most of

[00:44:18] us know you well. You are a former supervisor, and just out of, I guess I would call it, you know, full disclosure, I consider you a friend, and so I just put that on the table as well. Okay. So would you like to do your presentation? We would, Madam Chair. And Fayula did a great job of covering some of the history, so I'm going to be briefer. I'm going to slide through some slides, and then we are prepared to answer all of the board's

[00:44:52] questions. Okay. So thank you very much, Madam Chair and members of the board. For the record, I'm Erin Swisshelm. I'm a land use attorney with Walsh Colucci, and I am joined by Ron Meyer who is with SDC and is our applicant this evening and we really want to thank you for your time and consideration. I want to give just a little bit of background on SDC and who they are and what makes them different. They're a global data center developer but they have a particular focus and interest here in Loudoun County. The image on the screen which unfortunately did not translate very well shows that SDC has campuses that are operational and under construction

[00:45:31] throughout the world. A significant number of those campuses are here in Virginia, and SDC also has a history of being a good partner and a champion of Loudoun County issues. This includes voluntarily dedicating right-of-way, building road projects, constructing and supporting parks, and dedicating land to other public programming.

[00:45:52] They also have a history of pushing the standard even higher when it comes to design and commitments that make our communities better places to live through intentional development. And then I want to show you just this slide, and then we're going to jump straight to architecture.

[00:46:09] This shows the five Virginia campuses that SDC has. Four of them are here in Loudoun. One is in Prince William County, and then this is a snippet of the architecture from each of those projects. They are either currently operational or under construction.

[00:46:29] And Fayola did a great job. So I want to talk a little bit about the architecture here. We worked really collaboratively with staff, and I want to thank Faiula, Erin Fisher, before her, Allison, who has also helped, and our community planning reviewer for really working with us and getting creative about ways that we could incorporate the standards that are in the UTC place type and try to make this building look and adhere to those standards as much as possible.

[00:47:01] You can see here that there's a lot of glazing, a lot of glass. We're trying very hard to fit into that office-style building. And this is the view southbound on Future Bullpen Drive.

[00:47:18] This is the same building from the south on Future Bullpen Drive. And again, just really want to thank staff for their help on this one. So I do want to talk a little bit about the conditions. So, in addition to the staff recommended conditions, SDC proposed the two conditions you see here on the board.

[00:47:40] The first is the condition that Fayula talked about for recycled building materials. I want to talk a little bit more about condition seven. We think that that's really impactful and can be used as a building block for future developments.

[00:47:56] Condition seven requires that building D be constructed of low carbon concrete. That has to do primarily with the way that the concrete has been produced in choosing concrete that is produced in a way that produces less carbon byproduct. While this is more expensive than traditional concrete, the use of lower carbon concrete materials can create a significant impact on the environment by significantly reducing the amount of carbon byproduct that's released into the atmosphere during manufacturing.

[00:48:26] We propose this condition not just as a way to reduce the carbon footprint of this project, but has proved positive that there are ways to choose more environmentally friendly building materials even in industrial development. While the 30% standard that we are proposing here might not be feasible for all projects, we do think that this is a worthy concept to be carried forward in future applications.

[00:48:51] And with that, I wanna thank you for your time and the opportunity to tell you a little bit about this project. We again wanna thank Fayula, Allison, Aaron Fisher and the rest of our team for working with us. And, of course, we are available to answer all of your questions, and I'm sure that there will be many.

[00:49:07] You did that with five minutes, 45 seconds left. I've never seen that before. I try so hard to make your life easier, Madam Chair. And you just did. Thank you so much. I appreciate it. Supervisors, do you have questions? Again, this is Mr. Sainz's district. I will go to him first.

[00:49:23] Thank you, Madam Chair. Thank you, Erin and Ron, for being here in the presentation. So kind of the question, we're here for an additional 800 square feet. Why not figure out how to redesign it so you didn't have to come and spend however much money to do this application?

[00:49:40] Despite how much I may miss seeing you on a personal level, I don't want to be here at all. Our company doesn't want to be here at all. We would have loved to have processed this administratively. We tried many ways to do so, including redesigning the building. The issue is the proximity to the building to its direct south and its direct west have a fire code issue where if we tried to move it any closer to those buildings, it wouldn't have the 50-foot required clearance.

[00:50:07] And that really was the limiting factor for us. We tried to push it as close as we could to building number two, which is the larger building on screen north, screen up from here. And we tried to work with the tenant on a smaller building concept. Unfortunately, their customer has very specific requirements as to what goes in these.

[00:50:26] And it would have saved us, obviously, a year off of our schedule to avoid this process. um and so we would have loved to but we couldn't okay thank you and so okay so we have the three existing buildings the two builder one two two larger ones in the smaller similar size smaller one now and those are in operation and operating right now is that correct yes sir so there's power on site now and and i'm assuming if this was approved or whatever happens this building d that would have power as well can i yeah i'd love to speak to that question so the substation that directly north of the site the shell horn substation services a meter yard that's on site

[00:51:05] that meter yard is already energized for the three buildings on site and that meter yard will serve this building so the power which is approximately two megawatts which is i believe less than this county building uses uh is actually already there on site no transmission lines no more distribution lines except for the internal connections to this building on site already and will this building be seen from Loudoun County Parkway? No. You'd have to be looking through basically coming northbound on Loudoun County Parkway and through a couple buildings to be able to see that. So you really

[00:51:43] want to be able to see it on the Dulles Greenway technically? Dulles Greenway yeah about 300 feet away. Okay all right and for the low carbon concrete how much of the building will that be?

[00:52:00] Would that be used throughout the whole building or just a wall one wall two walls? It applies to all of the concrete that will be used for the project. So going from the foundation, through the panel walls, through any other concrete that would be used. And just a quick second on that, 8% of the world's carbon emissions actually comes from concrete production. It's a very significant amount. Obviously, this industry is very heavy in its use of concrete for its facilities. We think that a 30% reduction is a really significant first step in showing a commitment to making a globalized reduction when we're talking about an industry of this

[00:52:38] magnitude. And so it's something that we worked hard on with our tenant to be able to make a commitment like this. Thank you. Ms. Bricksman. Thank you. To the question I was asking staff about, and I'm just trying to go back in time a little bit, what was this site originally zoned for? The project, most of the projects, so basically there's, let's say, 80% of the project that was subject to what are called the reliance proffers from a project back in the 90s that Fayola had cited. And then there's about, let's say, 20 percent that's by right, not proffered OP, previously PDOP. That's the red triangles, right, are the parts that are in the by right OP

[00:53:18] area. The rezoned area. So time out for just a second. They were by right OP because of a, staff may have to answer this, but it was by right data center in OP because of a zoning administrator's memo. No, that was for only the 20% to the, the 20%, the 80%. Point of clarification, uh, supervisor birthsmen. Uh, okay. So I'm going to, I'm going to try to give you a timeline. Um, and Ron jump in if I'm missing anything. So, um, there was a rezoning of this

[00:53:56] property back in the 90s. Those were the reliance proffers. This project is now no longer subject to those proffers. They're subject to the proffers of that 2019 0002 ZMAP. That retained the OP zoning and updated some of the standards and proffers related to them. Data centers. Yeah. The rest of site was by right op because the site planning was done prior to the adoption of the current zoning

[00:54:28] ordinance so the original site plan was approved in like 2021 2022 the proffers for the 2019 proffer amendment included specifics regarding data centers which would allow it to be vested so those 605 000 square there was specific language in it yes yes ma'am correct okay okay interesting okay thank you yep uh mr crony thank you chair randall and thank you for that presentation are you going to be using tier four generators uh yes ma'am this will be a t one tier four generator uh in accordance with the new standards that came from deq in the last few months do the

[00:55:07] rest of the data centers have tier four generators a b and c i would need to come back to you and look at the plans on that okay no um because i think we should be all having tier four generators everywhere. I will say that all of SDC's current projects under construction and future all have selective catalytic production that get to the levels of tier four generators. Okay. Previous to the adoption of the DEQ

standards. So Mr. Meyer, that substation up there that you mentioned was Shellhorn substation, is that not serving the data center campuses that

[00:55:45] are to the north and south already? So I would probably defer to Dominion on what other campuses are serving. What I can say is that Shellhorn is serving this campus and that this building, when it was approved on the site plan, was already in Dominion's planning and planned to be served by this meter yard.

[00:56:03] So the capacity is already allocated, has already been planned for, already has power going to it, to the meter yard that's on site, and simply needs to have a connection turned on from the meter yard on-site to this building. Okay, why did the operator not build D when they built A, B, and C?

[00:56:24] I think it's a great question. I would probably defer to our tenant, but the tenant basically from my understanding with those conversations intended to build it around this time period, and because it was going to be off, there was going to be essentially, this campus was largely finished in 2022. And so there's going to be a period of about three years before they needed that next building. And so the decision was made to remove it from the site plan so we could close out the bonds. So you have to pay a pretty substantial bond premium for site plans as a carrying cost associated with that. At the time, the people working on this project didn't realize that that

[00:57:04] could trigger something like this in the future. And they thought they could just administratively put it back via a site plan and therefore save the cost of the bond premium which in hindsight we all recognize is you know wasn't the uh wisest move and trust me i think everybody involved on the process on our side would rather have um avoided this all together but here we are okay thank you mr latour simple question you keep teasing us with the slide that says why are we here but we haven't gotten to actually see it oh it flashes through sure stopped on it yeah this is This is essentially the timeline.

[00:57:38] I just wanted to see the slide. Her timeline was prettier. Yeah, Fayula's is much prettier than ours. But it's just the timeline restated. Yeah, I'm just, okay. I think the explanation you just gave about the bond premium was, I think, the real answer that we weren't quite, the missing piece that we weren't quite getting there.

[00:57:58] And why it was removed. And why it was removed in the first place, which then led us to this point. But I get it now, and I don't have any issue with 900 square feet. Mr. Turner. Thank you, Madam Chair.

[00:58:14] What is the total maximum power contracted for on your electricity service agreement with Dominion for buildings A, B, C, and D at completion? That contract is with our tenant. That's subject, unfortunately, to a nondisclosure agreement. But for this building, I've been able to get permission to say that it's a two-megawatt maximum facility.

[00:58:35] Okay. Thank you. Did you say that 2019 Project Nova Rezoning had vested rights from 1993? First of all, you're hilarious calling a point of clarification. That was good. That was really funny, but okay.

[00:58:53] I was trying to help. We've gotten wrapped around the axle on the timeline. I understand there are a lot of moving pieces. So, no. Well, yes, because the 2019 rezoning was approved prior to proper amendment, but it had a ZMAP number, was approved prior to the adoption of the current zoning ordinance, and therefore has vested rights to certain portions.

[00:59:24] Of the 1993 zoning. Really only as it relates to the data center use. Right. But yes. Yeah, that's what we're talking about, though. Correct, yes. Can you build, with the exception of these, I've heard now, I've heard \$8,000, I've heard \$80,000, I've heard \$14,000, I'm not even sure how much it is.

[00:59:43] I think it's \$1,400, or what is the amount we're talking about? So the building itself is... No, no, no, the part we're talking about, the special exception part. It's between 800 and 1,000 square feet. It's about the size of a two-bedroom apartment.

[00:59:59] Can you build, okay, if you didn't have that two-bedroom apartment part, could you still build the rest anyway right now? Yes. Okay. All right. Thank you. Of course. We have, as I can see, we only have one speaker on this item, as I can see, and that speaker is Tia Ehrman.

[01:00:21] If she will come forward, please. Hello, Ms. Ehrman. Bless you. Good evening. Bless you, bless you. One more. Good evening, supervisors. My name is Tia Ehrman, speaking on behalf of the Piedmont Environmental Council. My colleague Emily Johnson spoke on this application at the Planning Commission, and I'm here this evening with many of the same unanswered questions and concerns, and I was surprised to see a data center on the consolidated agenda. While we appreciate the enhanced architecture our Planning Commissioners were so pleased with in receiving

[01:00:59] the most recent proffer statement included in this packet, we still find no reference to the cooling mechanism planned for this complex and no information about the number and tier of generators anticipated. As this will have a huge, large impact on not only the energy and water usage of this data center as well as the pollution admitted into our community, these are the materially important details for the county and residents to understand up front.

[01:01:22] We would like to see generator type specified in the proffers and further commitment to not use generators for non-emergency on-site power generation. This application was last before you in late 2019 during the height of the data center approval boom in the county.

[01:01:37] Think how far we've come from 2019, it feels like a different world. We now understand the energy hole this industry has plunged our nation into with long-lasting climate impacts and we better understand the questions communities should have answers to. While we understand the conversation around previously approved square footage, a footprint expansion gives the county an opportunity to at least negotiate modern energy solutions, solar on-site paired with batteries for emergencies, for examples.

[01:02:04] We are constantly told how burdensome this process, the legislative process, is for companies, but here we are for the sake of a few hundred square feet. Please oppose these continued expansions. We also agree with staff's general recommendation against additional data center square footage in the urban transit center place type.

[01:02:21] Thank you. Thank you, Ms. Ehrman. Anybody else who wants to speak on this item? Seeing no one, I will go to Mr. Sains for a motion. Thank you, Madam Chair. I move the Board of Supervisors Ford-Legy 2025-0015 SDC Ashburn 1, special exception 2025-0031 to the June 16, 2026 Board of Supervisors business meeting for action.

[01:02:47] Motion is made. Seconded by Supervisors Letourneau, please send a motion to Mr. Sains. Thank you, Madam Chair. I think we've heard everything about why this application is here. It was approved and they took it out and then now they're trying to put it back in and then with the additional

square footage, staff would not allow it administratively so they have to come in front of us for the 800 to 1,000 square feet.

[01:03:11] Again, keep in mind, even if we say no to this, they still can build the building. So I think the real question is, do we allow the extra 800 to 1,000 square feet? You guys can be asked to proffer, and I will do that now to proffer, if it's not already in there, to proffer for your, I think you said one backup generator.

[01:03:31] If you can proffer that to be two or four or better. And then look at doing some solar paneling on site or on the roof. And we'll see what comes back to us in June. Thank you.

[01:03:47] Thank you. Okay. Mr. Turner. Thank you, Madam Chair. I just want to make note that I will vote yes to move this on to the board meeting for a decision, but I have not made a decision yet. Thank you. Thank you. I would say, Mr. Ehrman, I thought your comments were really very helpful and insightful.

[01:04:09] Truthfully, this application itself from just strictly a land use point of view is an application that from a land use point of view makes sense to support. However, Ms. Ehrman said some things that are really, really important.

[01:04:25] She said, you know, as we talk about the simple land use and the ones that are in the right place and have the power, all the things that are there, it's also a good time to talk about other conditions that we should be discussing. We know that solar cannot power a data center, that we know, but we also know that solar can be captured to be used at another place.

[01:04:49] We know that, as this applicant is already doing, the carbon concrete is really important, and to have that discussion. I do think that, you know, I'm going to soon have a data center town hall, which is going to be not that fun, but we need to do that to clear up a lot of misconceptions and answer questions and have people say what they want to say.

[01:05:14] At the same time, no matter how long ago these data centers were allowed by Wright, which is literally like in the 90s and early 2000s, that doesn't mean that we've done a particularly good job of asking for some things in an application that we could have asked for even though they were allowed by Wright.

[01:05:35] And so that was really helpful. And I think the discussion for me, because it's always, always, always a land use discussion for me, is land use and then what else can we do? And I do appreciate that this applicant's already doing some other things, especially environmentally, that I might have asked for already that they're already doing.

[01:06:00] So I will vote to move this on. And when it comes to the board in June, I will vote on this as I do most things based on the land use. Thank you. Mr. Sains? I think we're good. Thank you.

[01:06:15] All right. Motion was made by Mr. Sains, seconded by Mr. Letourneau to move this on to, I'm sorry, what was the date? June? June 16th. June 16th meeting. All in people say aye. Aye. Opposed? That motion will pass 6-1-2 with Ms. Brixman abstaining and Mr. Kirshner and Ms. Glass being off the dais.

[01:06:42] Thank you for the point of clarification. I really appreciate you. Thanks so much. Thank you so much, ma'am. We appreciate your time. No problem. All right. We have one more item. Item number seven. Is it the same staff? I'm going to move staff out.

[01:07:01] And then we'll go to, after this, we're going to go to the, oh, I'm sorry, we're going to go to closed session and then take our dinner break then. Hi, how are you?

[01:07:26] Good to see you. And we're ready when you are. Good evening. My name is Allison Britton. I'm with the Department of Planning and Zoning, and I'm here today to present the Barrister substation application. The subject property straddles two different parcel boundaries, and it is located east of the intersection of Shellhorn Road and Loudoun County Parkway.

[01:07:46] It is just north of the last application. The site is split zoned, planned development, research, development park, PDRDP, and office park, OP. It's located in the urban policy area in the urban transit center place type, just like the last one.

[01:08:02] A portion of the subject property is currently being developed with a utility substation that was approved, and I will talk a little bit about that momentarily. The area proposed for the new substation is predominantly undeveloped and contains mostly limited forest cover.

[01:08:20] So the applicant is requesting a commission permit and a special exception for the utility substation and a minor special exception to reduce parking requirements. Here is a graphic of what I was sharing earlier. So that red is the one that was previously approved.

[01:08:36] It is right next door. This is south of the Dullesbury site and north of that Shellhorn substation just previously heard, mentioned at least. So generally here is the layout.

[01:08:53] can see the limits are proposed here in pink. The applicant is proposing to screen the site with a 15-foot wall on the eastern and sort of southern sides, and then a 12-foot wall around the rest of the site. So it is situated kind of tucked in there. There is Risker to the south, and the future Barrister Street is on the east side, not constructed yet. So generally, like I said, this is a portion of the Dulles-Berry site and contains other substations. So therefore it is

[01:09:31] pretty well developed in the area with industrial uses. However, it is located in the urban transit center place type. It was recently re-designated from urban employment as part of the phase one data center CPAM application from March of 25. And so with that re-designation in the urban transit center place type substations are not an anticipated use urban transit center place type envisions mixed use residential commercial and business type uses so with that redesignation as I said it's not compatible and staff would recommend enhanced design measures being in

[01:10:09] the urban policy area and being adjacent to specifically a future roadway so that is the only issue for board consideration is that on its face this is inconsistent with the place type and staff would recommend enhanced screening measures, something like enhanced materials, enhanced design, something to make it visually distinct when you enter the urban policy area. Staff recommend a number of conditions of approval related to environment and transportation. The opkin is, well, staff have conditioned to, and the opkin is agreeable to dedicating a portion

[01:10:45] of the future right of way for Barrister Street. The planning commission recommended approval to board and staff can support approval um ratification of the commission permit and approval of the special exception as it's generally consistent happy to answer any questions okay okay uh questions and again this is mr sainz's district so i will go to him first mr sainz thank you madam chair and thank you staff for the presentation so this substation to go back to your image uh so it's the one in the yellow here that's right and it will power from your understanding if you don't

[01:11:25] don't know the answer please say so next applicant but it will power this data center that's currently under construction now is that correct? I would defer to the applicant. Okay and you said what is

this one again this is a previously approved substation another one? That is a previously approved not yet constructed substation um called the Stratus substation I think it was just approved last year. And do you know who that's going to power? I do not. And this is the shell horn substation that was talked about for the previous application that's down this way? That's right yep. Okay all

[01:11:56] All right, and I believe you can't. Oh, will this be a GIS substation? I believe it is proposed to be a kind of a hybrid, so there is a GIS component, yes.

[01:12:14] When you say hybrid, what do you mean? The answer is yes, it is, there is a GIS component to it. So is it half GIS, half, I guess you could say traditional? There are, yes. Okay, all right, I'll ask some more questions about that with the applicant.

[01:12:30] All right, thank you. Thank you. Ms. Brixman? Thank you, Madam Chair. I think I can ask this question. You may or may not have the answer, but two planning commissioners opposed the specs. Do you know why did they say?

[01:12:50] Generally, it was related to discussion of the screening. The screening and the visual impacts. The visual impact from future barrister street. Okay, thank you. Mr. Crowley. Thank you, Chair Randall, and thank you for the presentation.

[01:13:09] So what engaging design features on the proposed green wall? I mean, you're recommending, are you recommending like a livable green wall? You said public art exhibit or mural. Is staff proposing?

[01:13:28] Yeah, I think that a green wall would be consistent with what the urban policy area is looking for, Something that differentiates it either in material or design or variation so that it is distinct when you drive into the urban policy area, it feels like an urban area.

[01:13:44] Did we put the Stratus, do you mind putting that back up there? Is that a Dominion substation too? Yes. Do you know? Okay. Does that have any nice features, you know, that could be carried over or were we still in the beginning stages of looking at these design features?

[01:14:06] Stratus substation is screened with a 12-foot masonry wall, but it is not as closely located to adjacent roadways, so there was probably less of an emphasis on that application. Okay. Okay, and right now, what are they proposing?

[01:14:25] What's Dominion proposing right now? It's just the 12-foot, I think I saw. It is a 15-foot wall adjacent to Future Bear Street and then a 12-foot the other way around, so it's kind of hard to see on the screen, but it is on the east. but nothing unique about those walls right just the typical walls uh it is uh you know a masonry wall yes okay thank you uh okay good evening you all have 10 minutes you could uh sit at the table

[01:14:57] or stand at the podium either way and we're ready for you when you are good evening my name is jack story i'm with duery we're here on behalf of dominion whose applicant with me is jerry esby from dominion and greg baka from dominion so as you heard earlier this is a hybrid substation so So there is a portion that is GIS, that's on the high side that comes in from the transmission line that you can see in yellow running across just to the south of the yellow substation area there.

[01:15:33] So that is a 230 kV transmission line that is existing today running through the site. And once it is stepped down from that higher voltage to the lower distribution voltage, that is the air insulated portion of the substation.

[01:15:48] So again, the GIS is on the high side and the AIS is on the low side. This data center is -- sorry, this substation is providing power to the Dullesbury campus. That is the primary driver for why the request to Dominion came in for this substation.

[01:16:07] But it does support the overall reliability of the grid by being able to provide just another point where the power can be regulated and distributed throughout the grid. But the primary driver is the Dullesbury campus. It is not the large building that you see on the screen.

[01:16:23] It's the area that is under construction just to the north of it. That is another data center that's already been approved and is under construction. This will be an unmanned substation. It's typical of all Dominions. It only really receives about five trips per month that are for service.

[01:16:39] And again, it is co-located with another substation on the same parcel. That is the substation that we were talking about earlier, the Shellhorn substation, and And then just on Cloud's property, just to the left of the screen here, is the one that is under construction, Stratus Substation.

[01:16:56] And the line already has been, it's, you can see it in that last slide, it was running through there and the substation is under construction. So it does align with the Dulles-Berry campus and it directly supports that. And as you heard in the staff report, this is in the UTC place, it is the UTC place type, which was remapped after this project started.

[01:17:16] So we have worked with staff to address some of those concerns that Alison previously mentioned. This slide just kind of shows the area that changed during this application and the star is the location we're in. So some of the things that we've worked with staff, and they did recognize that it is compatible with the uses that are already in the area.

[01:17:38] And so that's not necessarily what we are trying to address, but it's like, how do we present a better picture from that future roadway? And that future roadway is not yet designed. It's a CTP road. And so we have agreed to dedicate that 90-foot right-of-way without a road design.

[01:17:56] So there are some language in the condition that will allow the county to come back after that road is designed and seek other easements from Dominion. And they have agreed to that, subject to Dominion working to maintain their right-of-way for that transmission line through there.

[01:18:13] But the design commitments that we've agreed to to help mitigate this view not being in the correct place type of the substation, and it is increasing that wall. So we have a 12-foot wall that Dominion is putting, agreed to put around the whole substation.

[01:18:28] The conversation was what can we do on that side? So we've increased it to 15 feet on that side that fronts that. During the planning commission, there was a request to wrap it around some of the corner where the transmission line is. We agreed to do that as well.

[01:18:44] So it's not just along the future roadway, it's also wrapping around one of the corners where there was some discussion. We've also agreed to enhance the road corridor buffer in that area with an additional 12 evergreen plant units per 100 linear feet.

[01:18:59] And then to the south of the substation, in between the two substation, we've agreed to put all of those trees in a tree conservation area, and that's a pretty significant area and that helps also just soften that view. we've prepared a few graphics on the next couple slides to illustrate some of those commitments and as you can see on the right that is the new wall that dominion has implemented as their standard it

has not been constructed anywhere in Loudoun County yet so this is not the typical wall that you're used to seeing at the substations this is a concrete but it is a stacked stone type of look and

[01:19:36] The charcoal color's been selected to kind of blend in with the rest of the equipment and actually is the data center just to the north is in a gray palette as well. So we feel that the color is appropriate here. You can see in green that area of tree conservation that we're doing and again there is the enhanced type 2 buffer that runs down the entire length.

[01:19:57] And another thing to note is that since that road hasn't been designed we do have a rendering to show you but we don't know where that road's going to be so we've prepared the rendering from the existing grade which is about 15 feet lower than the substation and then we have a 15 foot wall so in effect this section here illustrates that today it is fairly well screened subject to where that future road goes so you can see the existing grade the type 2 buffer that's enhanced and then the 15 foot wall and here is a simulation of what that would look like without the road but this is the 90 foot right away where the fuse taken from with the hands buffer you can see

[01:20:36] the existing transmission lines in the background and the data center is off to the right not quite visible in this view and in summary the planning commission as you heard did recommend approval of this there's no outstanding technical issues with this application staff is in support of the parking reduction request that we've asked for and I didn't mention this earlier but as you can see the purple line does run through the substation we are working on a boundary line adjustment to make this all dominions parcel and we've been working on that with the developer of the Dullesbury campus and with that we'd be happy to answer any questions

[01:21:16] you have thank you everyone's finishing their presentations early tonight I love that um uh we go to questions and again Mr. Sanes this is your district I'll go to you first thank you madam chair thank you for the presentation so with this substation would you have to run new lines or you can tap into the existing lines that are already in place?

[01:21:37] We're tapping directly into those lines so it just drop off the pole into the substation basically. Okay so we have lines, are they running through the yellow line? It's the yellow line that runs right through the right below the substation.

[01:21:53] So this line? That's correct. And then so this line what's happened to this and what's happened to the other one as well? No, just at that corner where the two touch, just to your left, lower left, right there. There's a pole right there, and it will just drop right into the substation from there.

[01:22:12] Okay, do you have, and it looks like, well, I don't know if you have it in your slides, you just chose not to show us, but do you have an illustrative of what a hybrid substation would look like? We don't have, there's...

[01:22:28] You don't have it, just say. So the difference is that on the GIS side, all of the equipment is contained inside of a structure, an enclosed building and the AIS portion is your typical substation that you're used to seeing with. Well can we get an illustrative of what that would look like or if you have realistic another substation that's a hybrid somewhere else that you can send that to us as well please before we see this again. Yes we can do that. All right thank you. I will say that the substation that's existing on the property is an AIS air insulated substation that's the shellhorn

[01:23:03] substation that's that's there okay but it's not hybrid though no it's yeah so i'm asking because you're saying this one's supposed to be hybrid correct yes so you would like to see a hybrid substation not two separate if you again if you don't know the answer that just say so but i would like to see what a hybrid station looks like what you're proposing to do here if that's already in existence somewhere else what that looks like in real life if that's not the case can you do it illustrative so we can see what it looks like yes thank you thank you um ms umstead

[01:23:39] thank you madam chair um you mentioned that this uh substation was mostly directed at the i guess the dulles berry data center but it also would impact grid reliability does that grid reliability benefit residents and businesses other than data centers it benefits anybody who uses electricity in the in the county so yes it would be residents electric i'll let

[01:24:15] jerry if we can say something yeah jerry espy i'm the project manager for barrister there will be availability of circuits to go off-site and tie into our existing distribution facilities for reliability as well as serving other customers. Okay, thank you. Mr. Crony. Thank you, Chair Randall, and thank you for the presentation. So what is that Dulles-Berry proposed substation? So is that another one for that campus, the one across the way? No, I think it's just a graphic that doesn't

[01:24:55] read very well. It's calling out two different things. The purple line is the Dulles-Berry campus and there should be a line that's pointing to it. Oh, okay. So it's not, okay. But you're building, it looks like you're doing like three substations because a shell horn is yours as well and Stratus. All three are Dominion. This is a Dominion parcel that has an existing shell horn substation that's already constructed. It's the one you see in the lower portion. Just to the left of the yellow is the is the stratus is stratus and it's under construction it was approved okay

[01:25:34] is this the only hybrid that you're that you're doing or are there other gis hybrids i don't have that answer of where it's been constructed elsewhere in the county okay and then um would you be willing to do a um a wall that is more attractive along barrister street because um that that is what staff is asking for, an engaging design, because it's off barrister sheet. I understand you're doing a 15-foot masonry wall, but that gray is not very attractive.

[01:26:13] It is something that we have looked at. Dominion does have standards, and so the actual wall that encloses a substation cannot deviate from that standard. So if we were to do it, the substation would need to be redesigned because as you saw on that screen we're about 30 feet away from that future roadway so the substation would have to be reconfigured to add a secondary wall that had no i'm not asking for a secondary i'm asking you to make the one that you're proposing better yes and i do understand that and dominion does have a standard that does not accommodate any changes from that standard which i think is what the request is it would deviate from dominion standards

[01:26:53] so it would need to be a secondary wall that could have some of those embellishments. That's interesting. So Dominion only has one standard? Is that what you're saying, as far as screening? For this level of wall, there's different security levels, and the level of this wall, this is the wall that they use for it, and they don't deviate from it.

[01:27:14] And so it has to be gray as well? It has to stay that color? There are three different colors within the palette. This is the one that we felt was most appropriate. Okay, thank you. Thank you. Mr. Turner. Thank you, Madam Chair. The Dulles-Berry campus, that's an existing data center or under construction data center?

[01:27:39] It is. The one you see on the screen is existing. It's finishing up construction. Is that all of the buildings for that campus or are there other buildings planned for that campus? There is one that is under construction. It's hard to see in this, but it's directly north of the substation in that dirt area that you see. No. Sorry, I don't know.

[01:27:59] that'll be part of the dullesbury campus it's it's directly yeah i see it i see it it's across the street right well no it's it's so i see i see portable generators just to the north of the dullesbury building that we're looking at and then before above that i see some black lines which looks like the construction area yes okay uh it touch it touches the substation okay basically okay so tell me if this statement is is and when you say hybrid and i heard you say gis on the high

[01:28:36] side and ais on the low side based on the picture you showed you're telling me on the high side meaning up at the top of the hill within the visual sight line and cis and as you come down and you're screened by the the dropping elevation it turns into ais when i said high side and low side i was referring to voltage okay i always thought that was probably true so it was wishful thinking it is but it does come in on the side that's the furthest away from barrister street from all the public areas.

[01:29:05] Okay. So let me make this statement. Tell me if it's accurate. And if it is, then a lot of applicants in the future are going to hear this statement. So we're building a predominantly GIS substation to provide power to a built or under construction previously approved data center, correct?

[01:29:22] That's correct. Thank you. So I'm quite frankly a little surprised at your answer to Mr. Crony that Dominion has set what you do with walls, and that can't change.

[01:29:40] There are, I mean, first of all, you are a huge, huge organization and can respond quicker and with more agility than most.

[01:29:56] The fact that we cannot even discuss a green wall, the fact that you say, like, it's a concrete wall, it's going to be this color, it's going to be this design, that's what we're going to do i mean listen i i think dominion gets bashed a lot and that probably shouldn't happen but i think these moments don't help um you know where where i was and where i might be based on that statement is pretty surprising to me to be honest i mean the the with respect the inability to bend or give or at all um to have the discussion at all of what

[01:30:29] could be, knowing that we're dealing with, I believe in climate change, knowing all the issues that are going on, to say that this is the wall that's going to be, and it will not change, it's concrete, it's gray, this is the design, like it or lump it, which is basically what you just said, it's kind of a, and you don't know me enough to know that And these statements for me are strong statements.

[01:30:56] But that was a disappointing and surprising statement. And I actually think Dominion can absolutely build a green wall if you wanted to. It can absolutely be more environmentally leaned in if you wanted to.

[01:31:12] And I got to tell you, y'all might have lost me on that one. I mean, you really might have. And more it's because of just the intransigence of this is going to be it and that's all.

[01:31:28] That is not, I don't think you're being a good partner, I don't think you're being a good neighbor, I don't think you're being a good environmentalist, and I don't think you're reading the room, to be honest. And so, you know, I don't know what this motion is.

[01:31:44] I guess the motion is for this to go to another meeting, but is that the motion, Mr. Sains? I hope when we come, is it in June? Is it in June? I hope when we come back in June, is it in May? Oh, it's May 19th. I hope when you come back on my birthday, there's a different answer going on by then.

[01:32:03] So if you want to respond to that at all, but I was pretty surprised to your response to Mr. Crony. You can wait to May 19th to respond, but that's my statement. Okay. All right. That's fine. I think we have one speaker on this item, and it is a speaker who's going to talk remotely.

[01:32:24] Barry Wiseman. Mr. Wiseman, are you on the phone? Can we get Mr. Wiseman? Yes, ma'am. Ready when you are, sir. Good evening, Chair Randall and members of the board. I'm speaking on item seven with a life safety emergency, as I would consider it, for Route 650 on Oatlands Road west of Route 15. This is more of a bigger aperture of tertiary impact, I would say. The county um obviously is uh it moves quickly for data centers and substations um which have have their

[01:33:04] benefits um and along with their infrastructural support uh which is a requirement i'm asking for the same urgency for residents uh for children for the public school buses and for the first responders who have to navigate the road the road that i i mentioned um rad 650 it's a narrow gravel road with a cliff on one side and an equally steep drop on the other no shoulder no guardrails when two vehicles meet here mr weisman can we stop this time for a second mr weisman with sure of course with due respect i'm gonna i'm going to stop you um only because um in a

[01:33:42] public hearing we have to talk about the items that are on the agenda that's just that's just how our public hearings work and i don't i might be missing something and if i am i apologize i don't think you're talking about the item that we're discussing right now i think this that your your statements are very appropriate for there wasn't well yes ma'am respectfully there wasn't a line for me to associate my comment to um i have a i have a residential life safety consideration and it does have to do with the uh increased traffic um for these infrastructural

[01:34:15] projects and the the increased uh population and traffic associated so so it it seemed fitting to get in on the substation or any infrastructure associated to this development. Because, again, there wasn't a line for me to associate my comment.

[01:34:34] They asked me to associate it to a line. I understand, sir, and I completely understand. And so I will give you some options. Because this is public hearing and not a business meeting. In a business meeting like we'll have on May 19th, you can come and talk about any issue you want to during a business meeting.

[01:34:52] You can also always give us a call or email us. The only time we do try to stick to the agenda items is a public hearing. But at a business meeting, you are more than welcome to have this discussion.

[01:35:08] And, in fact, if you'd like to, we can sign you up to make sure that you are on the list for the business meeting on May 19th. Yes, ma'am. I appreciate that clarification, and forgive me for speaking out of order. I appreciate your understanding, sir, very much. Thank you. Mr. Sainz, does anybody else like to speak on this item?

[01:35:27] Mr. Sainz, would you like to make a motion? Point for clarification before I make the motion? Sure. I guess either to you or through you to Mr. Rogers. We have the date of May 19th. Could we push this out if we wanted to or no? Is it because it's a commission permit and we can't?

[01:35:45] That's correct. The commission permit, the last day to do that would be May 23rd. So if you don't act before then, it's deemed approved. Gotcha. Okay. All right. Thank you. All right, I move that the Board of Supervisors Ford-Legy 2025-0010, Barrister Substation CMPT-2025-0004, Special Exception-2025-0021, and Special Exception-2025-0023 to the May 19, 2026 Board of Supervisors Business Meeting for Action.

[01:36:17] Second. Motion has been made. Seconded by Mr. Sainz. Would you like to have an opening on the seconded by Mr. Letourneau? I'd like to have an opening on the motion, sir. Thank you, Madam Chair. We had a good conversation. I think we heard from at least one or two of my colleagues regarding the appearance of the wall.

[01:36:36] You mentioned that there's three colors, if I heard you correctly, that Dominion has done. If you can send that to us before way in advance, maybe tomorrow, before the 19th, and we will have some conversations regarding what this wall potentially could look like. But I think you should heed Chair Randall's advice and maybe be open and acceptive to other colors or materials if we suggest.

[01:37:01] And I think I mentioned my comments earlier. We'd like to see what a hybrid substation looks like in real life if you have a case. If not, please produce the illustrative. Again, please get this to us way in advance before the meeting on the 19th. I'm looking at you, Rich. I see you back there, right?

[01:37:16] Okay. All right. That's it. Thank you. Thank you. Mr. Letourneau. Yeah, I'll give you a little bit of a lifeline. Would you like to amend, because I saw you were trying to say something. Would you like to perhaps amend the answer on the wall? Yes, I would, and thank you.

[01:37:37] You're in my time, and it's running, so be quick. So real quick, what you're talking about, a screen wall around the substation, is a secured perimeter wall around a bulk electric system facility for the grid. From our security corporate security and standards They choose colors that do not attract bad actors to the facility With that said, you know, they they have three colors. That is a standard For the walls and they want to keep those standards because in all the substations were building those

[01:38:16] Styles are readily available should something happen to a wall In this area, you know, should a wheel fall off an airplane and hit the wall and hurt it and break it, we would have to fix it ASAP.

[01:38:32] So as far as any greenery on a wall, there can't be any greenery attached to the wall for climbing or for any growth on the wall. I think some of the standards for security are anything painted on a wall has to be maintained.

[01:38:53] Okay I'm going to reclaim my time because I'm half up. Thank you for that. Okay appreciate a little bit more context. That said I think if you're going to put the facilities in our county and you obviously know that there are concerns about them it might be worth at least a conversation. I think we're reasonable people but a conversation about exactly what some of these things are and what the options might be and hearing that there's only three and it can't be deviated from is probably not good answer at this point considering all the things that are coming because there's more after

[01:39:29] this and so perhaps it could be a little bit more collaborative in terms of some of those decisions. Understanding the security aspect which I think we have staff here that deal with those things all the time as well and perhaps that might be the appropriate avenue to talk about that but I think we're we're having some rough presentations in front of the board lately so let's work on that maybe um and uh you know i don't necessarily have a big problem with this given the location it is but you know there's

going to have to be compromise going forward on a lot of these things and hard and fast is probably not going to get them approved so that's just the reality thank you

[01:40:08] uh miss uh bricksman uh thank you madam chair i'm going to associate myself with supervisor Letourneau and Chair Randall's comments, the substations have to get better. We get to vote on this for a reason, and we can vote no on these special exceptions. Commission permits may be another story, but the special exceptions, we can vote no. And, I mean, I drive by that substation by Dulles Town Center on the regular, and I just—we even had negotiated some more mitigation there,

[01:40:42] and it is still horrible. It is a steel monster that our constituents have to drive by day after day after day. And what we are asking you to do is compromise with us and figure out a way you got to get, you're going to have to get creative. Because last I heard, we have 40 more of these that are supposed to be built in the county, 40. And our constituents are frustrated at the sight of them and we're hearing it. And so you're going to hear from us. So I'm going to vote no on this right now, and I'm probably, if there are zero changes, I'll be voting no on it when it comes

[01:41:19] back to us on May 19th, because this is unacceptable. This is the second or third time we've had a substation application in front of us with no, what I feel like, no acknowledgement of the fact of how ugly these things are and how frustrated our constituents are with this and how frustrated we are. And to think we've got 40 more, maybe 50 more coming. So I'm a no tonight and likely a no on the 19th. Thank you. Mr. Crony, you've already spoke on this item. You didn't? I don't think you

[01:41:57] guys are the same person. I thought like that. Okay. Yes, Mr. Crony. Okay, I'll trust you. Mr. Crony. I'll trust you. So I do want to associate myself with Supervisor Bristman. I put in the um in phase two of the data center uses and standards cpam and zoom uh substations for this reason so we could get better use specific standards that are meeting community needs you know the communities are asking for uh better um you know a better partnership with dominion

[01:42:36] and um and creativity regarding design you know i brought up the pepco how they are doing uh barns and houses that don't even look like substations you know i think we need innovations here i think we need to start looking outside the box and coming up with ideas the gis is great because it's fully enclosed but there are probably other designs that we could look at that other utilities have done in other localities. I heard 30. I heard that we need 30 more substations and

[01:43:11] Julie, Supervisor Brisbane, heard 40. Let's work in a partnership because these are encroaching closer and closer to our communities. I don't want them anywhere near, 500 feet would be my distance from residential, but I think we could do a partnership and look for standards that are, you know, meeting the needs of the community and listening to the community and being receptive to the community because they are voicing their concerns.

[01:43:46] Thank you. With respect, and I do mean that, I don't buy it. I just don't buy it. I don't believe it. And first of all, I'm not talking about a climbing wall that somebody could climb. I'm not talking about that. But your dominion, when you look around the world, quite frankly, I cannot believe that you cannot find any way to keep things secure and make them more environmentally sensitive and lean in more.

[01:44:20] I think that this is one of these we've always done it this way, thus it must always be done this way moments. I understand the rationale, but there's always someone who can do it different and better or some company that has done it different and better.

[01:44:41] And I refuse to believe that you all are the company that cannot do anything different, cannot do anything better, cannot do anything with more environmentally sensitivity there. you can offer the same thing in three different colors. That just doesn't cut it.

[01:44:59] So there's no reason for me not to vote to send this on because I don't know what you're going to come back with on May 19th. On May 19th, you may do some research and come back and say, look, we just found this is actually possible. Or you might not.

[01:45:15] But I'm going to be optimistic and lean into the idea that you may go out, talk to your engineers or whomever you talk to, and find out that there is something out there that's being done in this place, that that wall is both secure and safe and has these features.

[01:45:37] Even if it's what we talked about in the other application, the concrete that is, I forgot the word, more green concrete. something. You can do something. And so, you know, you could very well be heading toward a no vote if you can't bring anything back. I think that this might be a read the room moment with due respect. And the we've done it this way, we're going to do it this way is just not what we can

[01:46:14] hear right now is I mean at the very least you gotta know you're talking to elected officials and we are hearing from our constituents loudly and clearly and daily and we would be remiss if we did not reflect the voice the voices of our constituents to to everyone who comes before us and so take that is what we're what I'm trying to do right now is to reflect that vote the reflect that voice of my constituent, if that helps, take that for what we're doing right now.

[01:46:44] So thank you, and I'll go to Mr. Sainz for a closing. Thank you, Madam Chair. Yep, I'll just say ditto to everything everybody just said up here, read the room. Also, Supervisor LeTerno just showed me an image of a substation that Dominion's building, I think it's called Spring Hill-Tyson, or Tyson Spring Hill.

[01:47:03] You might want to look at that. That was actually a pretty nice design that you guys are doing down there. You can't do anything better in Fairfax than you do here, that's for sure. So you might want to take a look at that, because clearly you can do better than what's being presented. So we'll leave it at that, and we'll see you guys back on the 19th.

[01:47:22] All right, the motion was made by Mr. Sainz, seconded by Mr. Letourneau. All right, if you'll be able to say aye. Aye. Opposed? And any abstentions? All right, that motion will pass 6-1-2, with Ms. Brickspin voting no, when Mr. Kirsten and Ms. Glass being off today is.

[01:47:41] Thank you. Supervisors, do you need -- we're going to -- Supervisors, let's do this.

[01:48:02] We have barely a quorum going into closed session. So nobody else can leave because we have barely a quorum going into closed session. Do you need a break because it's going to be a lone closed session. So how about we take a five-minute break



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